

January 20, 2026

CITY OF CONWAY
CITY COUNCIL MEETING
CONWAY CITY HALL
229 MAIN STREET, CONWAY
TUESDAY, JANUARY 20, 2026

PRESENT: Mayor Barbara Jo Blain, Mayor Pro Tem Beth Helms, Amanda Butler, William Goldfinch, Justin Jordan. **ABSENT:** Julie Hardwick, Larry White – both attending HLAD.

STAFF: Adam Emrick, City Administrator; Mary Catherine Hyman, Deputy City Administrator; John Rogers, Deputy City Administrator; June Wood, Public Information Officer; Jeff Leveille, Technology Services Director; Jason Perzan, Fire Chief; Reggie Jenerette, Solid Waste Director; Robert Cooper, Construction Services Director; Lynn Smith, Human Resource Director; Ted Dudley, Public Utilities Director; Jessica Hucks, Planning and Development Director; Brandon Harrelson, Public Works Director; Dale Long, Police Chief; Timmy Williams, Hospitality and Beautification Director; Kayla Fleming, Municipal Judge; Ashley Smith, Parks and Recreation Director; Kelli Thomas, Deputy PIO; Bobby Wallace, Fleet Maintenance Director; Allison Williams, Finance Director; and Alicia Shelley, City Clerk.

OTHERS: There were approximately 20 others in attendance.

CALL TO ORDER: Mayor Blain called the meeting to order.

INVOCATION/PLEDGE OF ALLEGIANCE: Helms gave the invocation and led the Pledge of Allegiance.

The requirements for posting notice of this meeting under South Carolina's Freedom of Information Act (FOIA) were met.

CONSENT AGENDA:

- A. Final Reading of Ordinance #ZA2025-09-02 (C) to annex approximately 107.75 +/- acres of property located at or near the corner of Cultra Rd and Oak Street (PIN 325-00-00-0011).**
- B. Final Reading of Ordinance #ZA2025-09-02 (F) to rezone approximately 107.75 +/- acres of property located at or near the corner of Cultra Rd. and Oak Street (PIN 325-00-00-0011) from the Horry County Commercial Forest Agriculture (CFA) district to the City of Conway Medium Density Residential (R-2) district and the Conservation Preservation (CP) district upon annexation into the City of Conway.**
- C. Final Reading of Ordinance #ZA2026-01-20 (B) to annex approximately 0.15 acres of property located at 182 Quail Run (PIN 383-09-04-0040).**
- D. Final Reading of Ordinance #ZA2026-01-20 (F) to rezone approximately 0.15 +/- acres of property located at 182 Quail Run (PIN 383-09-04-0040), from Horry**

County Residential, no mobile homes allowed (SF10) district to the City of Conway Low/Medium-Density Residential (R-1) district.

- E. Final Reading of Ordinance #ZA2026-01-20 (E) to annex approximately 0.37+/- acres of property located at 801 Donald Street (PIN 369-12-04-0002).**
- F. Final Reading of Ordinance #ZA2026-01-20 (G) to rezone approximately 0.37+/- acres of property located at 801 Donald Street (PIN 369-12-04-0002), from Horry County Residential, no mobile homes allowed (SF10) district to the City of Conway Low/Medium-Density Residential (R-1) district.**
- G. Final Reading of Ordinance #ZA2026-01-20 (C) to annex approximately 0.4+/- acres of property located at 5007 Presbyterian Drive (PIN 383-08-02-0010).**
- H. Final Reading of Ordinance #ZA2026-01-20 (H) to rezone approximately 0.4+/- acres of property located at 5007 Presbyterian Drive (PIN 383-08-02-0010), from Horry County Residential, no mobile homes allowed (SF10) district to the City of Conway Low/Medium-Density Residential (R-1) district.**
- I. Final Reading of Ordinance #ZA2026-01-20 (I) to rezone approximately 0.44+/- acres of property located on Hwy 701 N / Main Street (PIN 325-13-01-0013), from City of Conway Low/Medium Density Residential (R-1) district to the City of Conway Highway Commercial (HC) district.**
- J. Approval of a Resolution accepting dedication of roadways & drainage and the financial guarantee for the roadway warranty for Hainer Place, Phase 2, subdivision (Blueberry Drive, Cottontail Drive, Cedarwood Drive, Oak Wood Drive, and Trap Lane).**
- K. Approval of the reallocation of previously budgeted FY 2025/2026 capital funds for sod replacement at soccer field #1.**
- L. Approval of the reallocation of previously budgeted FY 2025/2026 capital funds for playground installation and Lady Bug Park turf repairs.**
- M. Approval of a Resolution accepting dedication of roadways & drainage and the financial guarantee for the roadway warranty for Collins Walk, Phase 2, subdivision (Blueback Herring Way, American Shad Street, Bluegill Street, Redear Sunfish Avenue).**
- N. Approval of the 2026 Risk Management Resolution**
- O. Approval of the purchase of an electric boat for the Kingston Ferry Project**
- P. Approval of acceptance of a bid for Lakeside Cemetery & Rosehill Cemetery Lawn Care Service**

Q. Approval of January 5, 2026 Council Meeting Minutes

APPROVAL OF CONSENT AGENDA: Motion: Goldfinch made a motion, seconded by Butler to approve the January 20, 2026 consent agenda. **Vote:** Unanimous. Motion carried.

SPECIAL PRESENTATION:

- A. Presentation of Employee of the Month for January 2026 – Public Service –** A. Smith presented Tristan Casper with the Employee of the Month award.
- B. Presentation of the 2025 City of Conway Audit Report - Nathan Skipper, Smith Sapp CPAs –** Nathan Skipper of Smith Sapp CPAs gave a brief overview of the independent auditor's report regarding the City's Annual Comprehensive Financial Report for the fiscal year ended June 30, 2025.

FIRST READING:

- A. First Reading of Ordinance #ZA2026-02-02 (C) to rezone approximately 0.22 +/- acres of property located at 250 Chevy Chase Drive (PIN 367-13-01-0031) from the Horry County Residential, including mobile homes (MSF10) district to the City of Conway Low/Medium-Density Residential (R-1) district upon annexation.** Hucks stated that first reading of the ordinance to annex this property was approved at the December 1, 2025 council meeting, which is required in accordance with city requirements for connection to utility services. The property is currently zoned Horry County MSF10, which is a residential district that includes manufactured homes on minimum lot sizes of 10,000 square feet. The requested zoning upon annexation is R-1, which is consistent with the zoning of other properties that have been annexed in recent years, as well as the city's future land use map. Hucks said that Planning Commission held the required public hearing on the proposed zoning of the property at their January 8, 2026 meeting and recommended approval. Hucks stated that staff also recommends approval of R-1 zoning.

Motion: Jordan made a motion, seconded by Butler to approve first reading of Ordinance #2026-02-02 (C) zoning the property at 250 Chevy Chase Drive to City of Conway R-1. **Vote:** Unanimous. Motion carried.

- B. First Reading of Ordinance #ZA2026-02-02 (D) to rezone approximately 50.64 +/- acres of property located on E. Country Club Drive (PIN 339-00-00-0026), from the City of Conway Low/ Medium Residential (R-1) to the City of Conway Conservation Preservation (CP).** Hucks stated that this item was discussed at the January 5 council meeting. The property is now owned by the city, and the city is seeking to rezone the property to CP for protection of the environmentally sensitive and flood prone areas the property contains. Planning Commission held the required public hearing at their January 8, 2026 meeting and recommended approval of the proposed zoning. Hucks said that staff also recommends approval of the CP zoning.

Motion: Helms made a motion, seconded by Goldfinch to approve first reading of Ordinance #2026-02-02 (D) rezoning the property on E. Country Club Drive to CP.

Vote: Unanimous. Motion carried.

- C. First Reading of Ordinance #ZA2026-03-16 (C) to annex approximately 0.2 +/- acres of property located at 1326 Cottage Lane (PIN 338-10-02-0007).** Hucks stated that this property is located directly behind the parcel that has frontage on Church Street and Cottage Lane that was recently annexed and rezoned to Highway Commercial, in conjunction with the abutting property. The property is currently vacant, and the applicant is seeking to annex the property for future commercial development. Two other parcels on Cottage Lane on the other side of the subject property are also going through the annexation and rezoning process, so annexation of this property further closes this donut hole in the city, leaving just one property on Cottage Lane not within the city's jurisdiction. Hucks said that Planning Commission will hold a public hearing on the proposed zoning upon annexation to Highway Commercial at their February 5 meeting, and their recommendation will be forwarded to council along with first reading of an ordinance to one the property Highway Commercial Hucks said that this ordinance is for first reading of annexation only, in which staff recommends approval.

Motion: Blain made a motion, seconded by Butler to approve first reading of Ordinance #2026-03-16 (C) annexing the property at 1326 Cottage Lane. **Vote:** Unanimous. Motion carried.

CONSIDERATION:

- A. Consideration of the approval of changing the name for a new single-family development located on East Country Club Drive from "Rivers Edge Village" to "Homestead" (PIN 339-00-00-0025).** Hucks said that this development is located on East Country Club Drive, between Highway 905 and Long Avenue Ext. Council approved the current name, Rivers Edge Village, at their May 6, 2024 meeting. The preliminary plans for this development were approved in October of last year. the applicant is seeking to rename the approved development, which is a Conservation Subdivision, to "Homestead." Hucks said that in accordance with the UDO, council must review and approve all subdivision names. Hucks said that staff does recommend approval of the proposed name change.

Motion: Goldfinch made a motion, seconded by Blain to approve the subdivision name change to "Homestead." **Vote:** Unanimous. Motion carried.

- B. Consideration of the approval of a resolution authorizing a fee in lieu of open space for the proposed expansion of University Suites, located on Technology Blvd (PIN 383-10-03-0020).** Hucks stated that University Suites, located on Technology Blvd, is being expanded to include an additional 24 units on the opposite side of the street. This property was rezoned last year in conjunction with the original University Suites development to the R-3, or high-density residential district. The property is 1.75 acres in size, and there are 24 units proposed for construction. The requirements for open space

have been amended a few times over the last 10 or so years, and a 2016 amendment included a revision requiring that a fee in lieu of open space be provided when less than one acre of open space is calculated using the formula determining the amount of open space. This was because the amount of open space being required at the time for some of the developments would not have been compliant with the open space suitability standards in effect at that time. How the total amount of open space that is determined has also been amended, to a much simpler formula, which now requires that there be 1,000 sq. ft. of open space for each lot or unit in a proposed development. This means that there would need to be a minimum of 44 lots or units proposed to meet the minimum standard for providing open space onsite (43,560 sq. ft.).

Hucks said that in addition to the requirement to submit a fee in lieu of providing open space when less than one acre is required, the applicant is required to submit a written appraisal of the market value of the land to be developed, as if the development has been completed; in other words, post-development value. As part of the applicant's request for preliminary plan approval, which is considered by Planning Commission, the applicant requested a design modification from the appraisal requirements, requesting that the contracted amount for the property be accepted in determining the dollar amount for the open space fee in lieu. Planning Commission approved the design modification request, and granted preliminary plan approval, contingent upon final review and approval of the Technical Review Committee. Hucks stated that a separate request considered on the same agenda was for the same project, asking for approval of the fee in lieu amount of open space, but in a reduced amount, which is required to receive a recommendation by Planning Commission before being considered by Council, based on the following factors: (1) This is an infill development, an expansion of an existing student housing project that already contains open space amenities, including an outdoor pool, amenity center, a dog park, among other things, that will be available for use by the new residents; and (2) Although the open space areas shown to be provided on this site do not meet the minimum standards, there is some passive open space being provided, in addition to the fee in lieu.

Hucks said that Planning Commission considered the second request for the reduced fee in lieu amount at their January 8, 2026 meeting. Part of the discussion included the amount of open space that was already in place for the existing University Suites, which was approved under a different regulatory framework when previously zoned as a Planned Development and the open space was calculated very differently at that time. Because the open space that does exist is considered nonconforming, it cannot be credited toward the requirement for the proposed expansion. The open space ordinance currently in effect sets a standard method for calculating the fee based on the value of the land, the size of the site, and the amount of open space that would otherwise be required, plus a 25% surcharge, which was adopted as part of the most recent amendments to the open space ordinance. Using that method, and the contracted amount that was approved by Planning Commission via a design modification, the full fee in lieu of providing open space onsite is \$223,800. Planning Commission considered the applicant's request to reduce the fee in lieu amount that is calculated, based on the value of the land via the method they approved, and did not reach consensus on the fee in lieu amount. Two motions were made;

neither received a majority. It was split 3/3 both times. As a result, the applicant's request was denied.

Hucks stated that the question is not whether open space is required but in applying the policy that is in effect, whether the proposed fee in lieu amount is sufficient for this project. Based on the number of units proposed, the ordinance calculates the amount of open space required to be 24,000 sq. ft.; a little more than half an acre. As previously stated, using the applicant's own contracted amount, the fee in lieu amount would otherwise be \$223,800, when you take into account the 25% additional fee that is required. The applicant is requesting approval of a reduced fee in lieu amount of \$52,152.86, based on the reasons previously provided, and citing in their application that the project only lacks 6,991 sq. ft. of "suitable" open space if the requirement for the fee in lieu for less than one acre of open space did not exist.

Hucks said that staff's determination and recommendation is based on a few factors:

- The formula for determining the fee in lieu of open space is designed to approximate the cost of acquiring and developing new open space when a project creates demand for new park land. In this case, the city would have to acquire roughly half an acre of land elsewhere. The standard calculation works best for large, standalone developments where residents will rely entirely on new or offsite public facilities, not ones that have private amenities nearby.
- This project is a small, infill expansion, not a new, isolated development. Residents will have access to private amenities directly across the street, which already serves a similar population. As a result, the demand this project places on City parks and recreation facilities could be considered much less than what the formula in the ordinance assumes. The assessed fee (\$223,800) reflects a hypothetical cost based solely on land value, not actual use or impact.
- Applying the full fee in this case could unintentionally discourage infill development in areas the city wants it, pushing development farther out where infrastructure and services are more costly, contributing towards urban sprawl. A reduced fee supports the City's broader goals of efficient land use, student housing near campuses, and minimizing sprawl, while still complying with the ordinance. Staff's recommendation is to approve a reduction in the fee in lieu amount to \$65,191.008, which includes an additional 25% fee on top of the applicant's proposed fee of \$52,152. This approach balances the ordinance requirements with proportionality – the fee still contributes to city open space but does not over-penalize an infill project that is already leveraging existing infrastructure.

Goldfinch has concerns with the fee in lieu amount as University Suites was built in 2007 and the requirements were different then. Hucks explained that this is a new part and not part of the original development but has the same owners and is an expansion of the original directly across the street.

Blain said that she agrees with Goldfinch and is willing to charge the owners with a lesser fee.

Helms also agreed with Goldfinch but had concerns about traffic in that area. Hucks said that Technology Blvd is a city road and the residents would be able to just walk across the street.

Hucks added that staff is working on options for situations such as this moving forward.

Emrick explained the open space fund.

Motion: Goldfinch made a motion, seconded by Blain to approve staff's recommendation for a reduction in the fee in lieu amount to \$65,191.08. **Vote:** Unanimous. Motion carried.

PUBLIC INPUT:

- Lizzy Marlowe – spoke to council in opposition of the buffer ordinance from 2018.
- Tonya Robinson – spoke on behalf of community members that are in opposition of a sports complex being placed on the former Whittemore Elementary site and supports a community center at this location. Asked who made the decision to make this site a sports complex.

There was no further public input. **Motion:** Blain made a motion, seconded by Jordan, to close public input. **Vote:** Unanimous. Motion carried.

CITY ADMINISTRATOR'S REPORT:

Emrick informed Council of the following:

- Staff has started decorating for Valentine's Day and hope to have everything out by February 1. Decorations will be left up until February 23 and then staff will start switching to Spring and Easter.
- The wreaths on the bridge will come down tonight.
- Emrick reminded council that in 6 weeks, we will be getting ready to leave for our annual Budget Retreat and if there are any specific requests from City Council for retreat consideration, please get those to him as soon as possible so that there is time to review them and prepare a presentation for consideration.
- Staff was requested to do a speed survey at Laurel Street, near 5th Avenue. This study was conducted in November. The posted speed on Laurel is 25mph and the average speed was 28.87 mph. This indicates that there is not a speed issue on Laurel at this location worthy of further consideration.
- As you all aware, we have a major Stormwater project happening throughout the Conwayborough and Snowhill adjacent neighborhoods. This is a grant funded, extremely tight time window, massive project that will upgrade the stormwater infrastructure from Pine Street all the way to Kingston Lake. This project both replaces aging stormwater pipes and upsizes them, making the drainage systems more effective in heavy rain events and adding lifespan to the network. Mary Catherine Hyman will now give a more detailed update on this project, where it now stands and what future impacts may result from it.

Hyman updated council on the road closures for the following stormwater improvements:

- Pine Street Outfall
- Beaty Street Outfall
- Park View Road
- Graham and Long Roads
- Highway 701 and Boundary
- Ackerrose Drive in Rosehaven
- Ridgewood Drive
- Blue Bell Lane
- Moore Lane
- Laurel Street Drainage
- ERF at Fourth and Laurel

Emrick continued by saying:

- The mayor mentioned at the outset of the meeting that two of our Council Members are in Columbia today, representing the City at Hometown Legislative Action Day. This event serves as a centralized forum for local government leaders to inform themselves about legislative developments, advocate for their communities, and cultivate productive dialogue with state policymakers.
- There are some large culverts under Mill Pond Road that have settled, creating two big dips in the road before reaching Church Street. Mill Pond is down to one lane in that area to fix some joints in the culverts and then King Asphalt will come through and resurface that area when the temperatures rise and get it scheduled.
- The serious threat of a winter storm this weekend begins on Saturday and continues into Sunday, with sub-freezing temperatures continuing past that. The main concern is ice, especially from freezing rain. Temperatures near or below freezing could cause rain to freeze on roads, bridges, trees, and power lines. Even a small amount of ice can make travel dangerous and may lead to slick roads and possible power outages. The city has begun necessary preparations, and we are continuing to monitor forecasts closely. Emrick said he will keep Council updated as updates are received.
- John Rogers has begun to work on the next Citizens Academy which will kick off in the Spring.
- There are Department Head reports from Lynn Smith in HR, Chief Long in Police and Robert Cooper in Construction Services.
- No workshop, but there are a couple of Executive Session items as outlined in the agenda.

L. Smith, Cooper and Long all gave brief departmental reports.

There was some discussion about police officer incentives for those hired that are already certified, parking citations for those in the fire zones at Food Lion, and the recently purchased Jamestown property.

COUNCIL INPUT:

Helms

- Thanked the Fire Department for having Santa on the firetrucks riding through the neighborhoods.
- Asked for the Budget Books early
- Asked about special Olympics volunteers
- Hope everyone enjoyed MLK day off.

Butler

- Commended the Conway Horry County MLK Committee for a wonderful event honoring the life and legacy of Dr. Martin Luther King Jr.
- Thanked the community members that reached out to her about the Whittemore Elementary School site. Butler went on to say that the site is historic, and the history is not being erased or replaced. Voices are being heard. Wants everyone to be more transparent and to be integral in the efforts to honor and remember that site. Butler said that she opens and welcomes any dialogue and says that she will do her part to make sure that she not only listens but also speaks on behalf of those that have come to her with their concerns. Butler stated that we are 1 Conway and are stronger together; and said there are times when we all must come together for a common cause, and she believes that this is one of the causes. The site is important and will continue to be important and it is the city's job to remember that site. Butler pledges to make sure she communicates more effectively with the community and the remaining council members concerning that site.

Goldfinch and Blain said that Butler was very well said in her remarks.

EXECUTIVE SESSION: Motion: Goldfinch made a motion, seconded by Jordan to enter into Executive Session for the following: (A) Consideration of appointments to boards, commissions and committees [pursuant to SC Code §30-4-70(A) (1)]; (B) Discussion regarding Potential Acquisition of Property on Sherwood [pursuant to SC Code §30-4-70 (A) (2)]; and (C) Discussion of Employment of an Employee in the Police Department [pursuant to SC Code §30-4-70 (A) (1)]. **Vote:** Unanimous. Motion carried.

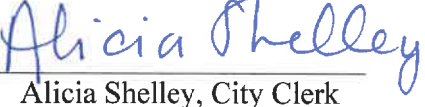
RECONVENE FROM EXECUTIVE SESSION: Motion: Blain made a motion, seconded by Helms to leave Executive Session. **Vote:** Unanimous. Motion carried.

POSSIBLE ACTION ON MATTERS DISCUSSED IN EXECUTIVE SESSION: Motion: Helms made a motion, seconded by Jordan to uphold the decision of the grievance committee's recommendation regarding an employee in the Police Department. **Vote:** Unanimous. Motion carried.

ADJOURNMENT: Motion: Butler made a motion, seconded by Goldfinch, to adjourn the meeting. **Vote:** Unanimous. Motion carried.

January 20, 2026

APPROVAL OF MINUTES: Minutes approved by City Council this 17 day of
February, 2026.


Alicia Shelley, City Clerk